

LICENSED EMPLOYEE TRANSFERS AND INVOLUNTARY REASSIGNMENTS

The purpose of this policy is to establish a procedure by which Loudoun County Public Schools (LCPS) will permit voluntary transfers of licensed employees, and to establish a procedure for involuntarily reassigning school-based licensed personnel when the Superintendent determines that an excess number of school-based licensed personnel exist at a particular school. Reassignment situations will arise, from time to time, in response to increased class sizes, eliminated or reduced programs, or due to enrollment reductions. The Superintendent will inform the School Board when an involuntary reassignment process will be implemented.

A. Voluntary Transfers

1. The process for licensed employees to apply for voluntary transfers to other licensed positions within the Division is administered by the Department of Human Resources and Talent Development (HRTD) through an annual Licensed Transfer Process. The Licensed Transfer Process begins on a date established by HRTD and ends on June 15. Limited exceptions may be granted to permit voluntary transfer requests, which follow the conclusion of the Licensed Transfer Process through the start date of the teacher contract for the upcoming school year. In those instances, both school principals or supervisors must agree to the transfer, HRTD must approve the transfer, and the transfer should not create a vacancy in a high-need area.

2. The procedure for transferring licensed employees is divided into two (2) rounds. Round 1 has two primary functions. The first function is to identify any employee who will be involuntarily reassigned from their current school due to actions including but not limited to boundary or enrollment changes or the opening of new schools, all of which will affect student population at existing schools. The second function is to allow eligible employees to submit applications to volunteer to be transferred to preferred schools (including new schools) or licensure areas. Round 2 follows Round 1 and is designed to fill vacant licensed positions at new and existing schools. Licensed employees who are involuntarily reassigned may also apply for a voluntary transfer to any openings posted in Round 2. Following the conclusion of Round 2, exceptions may be made to allow for voluntary transfers when certain approvals and criteria are met.

B. Eligibility for the Licensed Transfer Process

1. Licensed employees who are on Annual or Continuing contracts are eligible to enter the Licensed Transfer Process.

2. The following employees are not eligible to transfer:

- a. Employees holding an “end of year” contract;
- b. Employees who work .4 FTE or less;

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- c. Employees who have not successfully completed the Mid-Year Support program;
- d. Employees who are not otherwise eligible for continued employment with the school division in the following school year; and,
- e. Employees who have received an overall final performance rating of ineffective and will continue employment in the ensuing school year.

3. An employee who has two or more Developing/Needs Improvement individual ratings on their completed performance review for the same school year (regardless of their overall final performance rating), may be impacted in their ability to transfer.

4. A licensed employee who has not been subject to an involuntary reassignment and who has accepted a voluntary transfer offer will not be eligible for an additional voluntary transfer during the same contract year unless the subsequent transfer request is for a position that is considered a promotion or demotion from their current licensed assignment.

C. Involuntary Reassignments. The process for licensed employees to be involuntarily reassigned requires the school principal or supervisor to work in collaboration with HRTD and other departments, as applicable, to identify licensed employees to be involuntarily reassigned.

D. Selection Criteria for Principals for Involuntary Reassignment

1. Whenever a principal must make recommendations as to specific individuals to reassign from their school, the principal will first identify the pool of employees in the teaching assignment or endorsement areas designated for staff reallocation. The principal shall then ask for volunteers for reassignment from the pool. If there are no volunteers, the principal will then use an employee's length of service within the school division to identify the least senior employee(s) to be reassigned from the school.

2. Length of service within the school division is defined as the employee's effective date as a licensed employee beginning with the most recent term of continuing employment in a licensed position.

3. The least senior employee(s) may be eligible for certain exceptions to reassignment, as defined but not limited to below:

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- a. holding a co-curricular or extra-curricular responsibility defined by Policy 7316;
- b. functioning as Lead Teacher, Subject Area Lead Teacher or Department Chair;
- c. participating in other critical responsibilities within the school; or
- d. holding multiple licensed endorsements for flexibility for the school's overall instructional program.

In those circumstances, the next least senior employee who does not qualify for an exception shall be reassigned. This process shall continue until staffing reallocation numbers have been met.

4. Exceptions to reassignment will not be granted for employees who have not yet been released from the Mid-Year support program. An employee who has two or more Developing/Needs Improvement individual ratings on their completed performance review for the same school year (regardless of their overall final performance rating) will also be excluded from consideration for reassignment. Employees who are not eligible for continued employment for the following school year will not be considered for reassignment.

5. Teacher reassignment recommendations for special education teachers shall also ensure all federal and state mandates and school division needs are met, which may mean that certain teachers are excluded from reassignment regardless of seniority ranking. Reassignment decisions regarding special education teachers are made in collaboration with the Director of Special Education or designee.

6. Consideration should be given to avoid circumstances where an employee will be subject to an involuntary reassignment multiple years in a row, although such circumstances will not preclude an employee from being selected for involuntary reassignment.

7. If more than one teacher has the same length of service and none of them qualify for an exception, the last four digits of the employee's social security number will be used to identify the employee(s) selected for reassignment, with the highest number being the most senior and continuing in descending order.

8. Being eligible for one or more exceptions does not automatically exclude an employee for selection for reassignment. All exceptions must be approved by the Department of Human Resources and Talent Development.

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